AFFIDAVIT

STATE OF ARIZONA

CITY OF GILBERT

I, KEVIN TURNAGE make the following statement to Jacqlynn Klein, who has identified herself as an EEO Contract Investigator for the Department of Health and Human Services, Indian Health Service ("IHS"). I understand this statement is not confidential and may be shown to the interested parties (those with a legal right to know). I understand that this statement may be used in evidence.

I understand that the Indian Health Service has accepted for investigation the following claims of Tonie Greve (Complainant):

Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination) and subjected to harassment (non- sexual)/hostile work environment when:

1. Complainant alleged she was subjected to harassment/hostile work environment. Examples include, but not limited to:

    a. Demeaning comments made by Complainant's Supervisor, Kevin Turnage, which include, "the United States government does not care for its veterans, and it certainly does not care for American Indians." "I will fill all jobs with non-Indians." Complainant further alleged Turner looks at her dark skin and forgets that she is an enrolled American Indian, not African American, and feels free to make derogatory comments in her presence; and,
    b. Complainant alleged Phoenix Indian Medical Center (PIMC) does not advertise jobs using Indian Preference, so that Complainant can apply.

2. Complainant alleged she was assigned eight (8) doctors while co-workers Elizabeth Hill and Bertha Edison (both members of tribes recognized in Arizona) were assigned five (5) and four (4) doctors, respectively;
3. Complainant alleged she was forced to cover Clinical RN duties while others are not. Further, Complainant alleged Clinical RN Nurse Assessment/Nurse Triage were not part of her official duties. Complainant alleged Brenda Barr and Arlene Frost (both Caucasian nurses) were assigned these duties. Complainant also alleged she was required to perform the duties of Medical Assistants and Medical Staff Assistants;
4. Complainant alleged the abovementioned duties were not included in her PMAP and that she was rated the same as Caucasian employees with less duties;
5. Complainant alleged she did not have sick leave put back into the E-Comp leave system while other employees did; and,

6. Complainant alleged she was told she needed to provide a doctor's note for her immunocompromised status and reasons that she should not be placed on front line RN triage. Complainant further alleged other Caucasian and contract employees were not required to submit this documentation.

On January 17, 2023, Complainant requested an amendment to her formal complaint.

Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination) and subjected to harassment (non- sexual)/hostile work environment when:

7. Complainant alleged her reasonable accommodation, which she says was on file since February 21, 2022, was removed. Complainant further alleged she was being required to repeatedly submit forms to put an accommodation back in place; and,
8. Complainant alleged she was being required to swab symptomatic respiratory patients which was not part of her official duties.

Q1. What state and county are you located in as you answer these questions.

A1. Arizona Maricopa County

Q2. Please state your full name for the record.

A2. Kevin Dean Turnage

Q3. Please state your pronouns. (Ex: he/him/his, she/her/hers, they/them/their)

A3:

Q4. For what Agency do you work?

A4: Indian Health Services

Q5. What is your current title, series and grade, to what organizational unit/department are you assigned, and what is your duty location (city/state)?

A5: Policy Officer (ACTING) GS 0610 12 09 Phoenix Indian Medical Center/Nursing/quality/teleworking

Q6. For how long have you been in your current position? (If you were in a different position at the time of the alleged discrimination, please identify the position you held at that time by title, series, grade, organizational unit/department, and duty location.)

A6. Since April 2023.

Q7. Please identify your current first- and second-line supervisors, including name and title.

A7.

First-Line: Endryea McCabe, Director of Quality and Performance Improvement

Second Line: Clinton Pope, Chief Quality Officer

Q8. What was your job title, series/grade, organizational unit/department you were assigned, and what was your duty location (city/state) during the time of allegations: July 19, 2022, and August 12, 2022?

A8: Phoenix Indian Medical Center/Nursing/Primary Care/ Supervisory Clinical Nurse, Phoenix Arizona

Q9. Please identify your first- and second-line supervisors, including name and title, as of July 19, 2022, and August 12, 2022

A9:

First-Line: Jason White/Brandi Benjamin (Acting) Ambulatory Chief Nursing Officer/ Ambulatory Chief Nursing Officer

Second Line: Candace Lee, Chief Nursing Officer

Q10. As this complaint has been filed based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination).

A. Please identify your race, color, age (month/year), and national origin for the record.

B. Have you identified yourself to the Agency as an individual with a disability?

C. Have you engaged in prior EEO activity (i.e., formal or informal EEO complaint; witness in investigation of coworker's complaint; request for reasonable accommodation; verbal complaint about discrimination against oneself or others; threatening to file a charge of discrimination; etc.)?

A10:

A. Caucasian Male 50 (04/1973) American

B. Yes

C. Yes

Q11. What was your organizational relationship (if any) to Tonie Greve as of July 19, 2022, and August 12, 2022?

A11. Supervisor

Claim 1: Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination) and subjected to harassment (non- sexual)/hostile work environment when:

Complainant alleged she was subjected to harassment/hostile work environment. Examples include, but not limited to:

a. **Demeaning comments made by Complainant's Supervisor, Kevin Turnage, which include, "the United States government does not care for its veterans, and it certainly does not care for American Indians." "I will fill all jobs with non-Indians." Complainant further alleged Turner looks at her dark skin and forgets that she is an enrolled American Indian, not African American, and feels free to make derogatory comments in her presence; and,**
b. **Complainant alleged Phoenix Indian Medical Center (PIMC) does not advertise jobs using Indian Preference, so that Complainant can apply.**

Q12. For the alleged discrimination:

"Demeaning comments made by Complainant's Supervisor, Kevin Turnage, which include, "the United States government does not care for its veterans, and it certainly does not care for American Indians." "I will fill all jobs with non-Indians." Complainant further alleged Turner looks at her dark skin and forgets that she is an enrolled American Indian, not African American, and feels free to make derogatory comments in her presence; and,"

Please explain in detail when this happened (to include dates), where this incident happened, who all was involved in this incident, and what transpired? Be sure to include the nature of your involvement.

A12. Specifically Denied as nothing happened, this statement is slanderous, fabricated defaming, untruthful and if made under oath it is perjury as this never occurred and is completely fabricated.

Q13. Do you feel the incidents you described above, taken as a whole, constituted harassment and a hostile work environment for the Complainant?

A13. No fabricated events cannot cause harassment or a hostile work environment.

Q14. Are you aware of any Agency policy that guides employees about what to do if/when they feel they are being subjected to harassment in their workplace? If so, briefly describe your understanding of what an employee should do in such a situation.

A14. Yes, notify the chain of command

Q15. Was the Complainant's alleged harassment reported to the Complainant's chain of command? If so, to whom did the Complainant make the report to, on what date, what information did the Complainant share about the nature of her concerns, and what was the response to the report of alleged harassment?

A15. I have insufficient information to respond to this question as the complaint never informed me of her concerns or that she felt she was being harassed. I know she complained to someone but I am not aware of whom or when.

Q16. If the Complainant reported the alleged harassment to anyone in their chain of command, did they take any actions/measures to address the concerns the Complainant had raised? If so, what actions were taken, when and by whom?

A16. Not Applicable since I have no knowledge if she notified anyone above me.

Q17. How does the Phoenix Indian Medical Center (PIMC) advertise jobs when it comes to race or national origin? What are their hiring procedures when it comes to race or national origin?

A17. I cannot completely answer this question as after a request to fill a position is completed, it is sent to Human Resources, which has several different procedures before posting. I am aware of Federal Law regarding Indian Preference (IP) in which American Indian/Alaska Native applicants receive preference over non-Indian applicants when applying for jobs with the Indian Health Service (IHS) and the Bureau of Indian Affairs (BIA). They are eligible for preference if they (a) are a member of a federally recognized Indian tribe; (b) are a descendent of a member and were residing within the present boundaries of any Indian reservation on June 1, 1934; (c) are an Alaska Native; or (d) possess one-half degree Indian blood derived from tribes that are indigenous to the United States. After posting closes a panel of qualified candidates is sent to the hiring manager for interviews.

If there are qualified IP candidates for the position from applicants, then the hiring manager receives only those candidates, and if none of the IP candidates are chosen, then the position is blocked from being filled for 180 days at which time the position can be reposted. Human Resources handles all posting and management is only involved in approving the job description and then interviewing we have no control of any other aspect of the process. I can refer you to the PIMC policy *"New Employee Selection Guidelines"* and the "*Indian Health Manual Chapter Three part seven"* which covers Human Resource Administration and Management. Additional guidance is received from the Department of Health and Human Services. All jobs are posted on USA as far asjobs.gov. The rest of the process for advertisement is dictated and controlled by human resources.

Claim 2: Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination) and subjected to harassment (non- sexual)/hostile work environment when:

Complainant alleged she was subjected to harassment/hostile work environment. Examples include, but not limited to: Complainant alleged she was assigned eight (8) doctors while co-workers Elizabeth Hill and Bertha Edison (both members of tribes recognized in Arizona) were assigned five (5) and four (4) doctors, respectively;

Q18. Do you believe age was a factor in this action?

A18. No

Q19. Do you believe color was a factor in this action?

A19. No

Q20. Do you believe race and national origin was a factor in this action?

A20. No

Q21. Do you believe disability (mental/physical) was a factor in this action?

A21. NO

Q22. Do you believe reprisal (opposing discrimination) was a factor in this action?

A22. No

Q23. Was anyone treated more favorably than the Complainant in a similar circumstance? Identify by name, bases of the complaint, including specific age, circumstances, when the treatment occurred, management involved.

A23. No

Q24. For this alleged discrimination, please identify: what happened, when it happened, and who made it happened, and the nature of your involvement. Please be very detailed.

A24. Nothing happened

Q25. What is the Phoenix Indian Medical Center (PIMC) policy for nurse assignments to doctors?

A25. Clinical Care Coordinator (CCC), the position held by the complainant, is not assigned to doctors but teams. They are to work as part of the interdisciplinary team to ensure a patient receives the care ordered. I refer to the complainant's official position description *PX3439 PCMC CCC (02.28.21)*. These assignments were the assignments in place when I accepted the position. When I did attempt to change assignments, the complainant complained because I was changing assignments whether it was to ensure patient panel size or if it was related to the number of doctors assigned. The CCCs were all allowed to provide input into the changes. There's insufficient information to answer this question, as assignments vary depending on inpatient, outpatient, specialty, staffing, and other factors. Email chain provided with ccc input on the division of work.

Claim 3: Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination) and subjected to harassment (non- sexual)/hostile work environment when:

Complainant alleged she was subjected to harassment/hostile work environment. Examples include, but not limited to: Complainant alleged she was forced to cover Clinical RN duties while others are not. Further, Complainant alleged Clinical RN Nurse Assessment/Nurse Triage were not part of her official duties. Complainant alleged Brenda Barr and Arlene Frost (both Caucasian nurses) were assigned these duties. Complainant also alleged she was required to perform the duties of Medical Assistants and Medical Staff Assistants;

Q26. For this alleged discrimination, please identify: what happened, when it happened, and who made it happened, and the nature of your involvement. Please be very detailed.

A26. I have no knowledge of her being subjected to a hostile work environment. Four other nurses claim that the complainant creates a hostile work environment.

Q27. Do you believe age was a factor in this action?

A27. No

Q28. Do you believe color was a factor in this action?

A28. No

Q29. Do you believe race and national origin was a factor in this action?

A29. No

Q30. Do you believe disability (mental/physical) was a factor in this action?

A30. No

Q31. Do you believe reprisal (opposing discrimination) was a factor in this action?

A31. No

Q32. What knowledge do you have of the Complainant's alleged harassment where she was forced to cover Clinical RN duties? Did she question why she was forced to

cover these duties? Please explain why these duties were assigned to the Complainant.

A32. 75% of her job is described as clinical duties. She was never forced she was asked to complete an assignment that is in line with and included in her official position description *PX3439 PCMC CCC (02.28.21)*, which states:

Recognizes urgent/emergent patient and clinic situations and initiate emergency medical procedures…(which by definition is triage) …Uses appropriate medical supplies and/or equipment for the assigned clinic, such as 12-lead EKGs, fetal monitor, pulse oximeter, etc. and collects patient specimens, including blood draw, if needed. Processes lab specimens for transport or perform tests, such as waived tests, to obtain results. Perform other related duties as assigned.

All CCC's are expected to cover the Nurse Assessment (Triage) Room when the nurse assigned to the room is out. They were assigned in rotation.

Q33. Did the Complainant report to anyone in their chain of command that she felt the actions/treatment at issue in this complaint were harassing and/or were creating a hostile work environment for her? If so, to whom did she make her report to, on what date, what information did she share with you about the nature of her concerns, and how did you respond?

A33. Not that I am aware of.

Q34. If the Complainant reported the alleged harassment to anyone in her chain of command, did management take any actions/measures to address the concerns she had raised? If so, what actions were taken, when, and by whom?

A34. Not Applicable

*Q35. Please describe in detail the Complainant's job duties as a Clinical Care Coordinator, RN, GS-610, 10-7*A32.

A35. I refer to her official position description *PX3439 PCMC CCC (02.28.21)* 75% Clinical Care Duties 25% Coordination Lead Duties. This was also provided numerous times to the complainant, and she refused to discuss how the duty assignments she questioned were in alignment with the noted position description.

Claim 4: Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination) and subjected to harassment (non- sexual)/hostile work environment when:

Complainant alleged she was subjected to harassment/hostile work environment. Examples include, but not limited to: Complainant alleged the abovementioned duties were not included in her PMAP and that she was rated the same as Caucasian employees with less duties;

Q36. For this alleged discrimination, please identify: what happened, when it happened, and who made it happened, and the nature of your involvement. Please be very detailed.

A36. I am unaware of discrimination based on race, color, age, national origin, disability, or reprisal. Since I do not have knowledge of her rating or score there is insufficient information for me to respond to this question

Q36. Do you believe age was a factor in this action?

A36. No

Q37. Do you believe color was a factor in this action?

A37. No

Q38. Do you believe race and national origin was a factor in this action?

A38. No

Q39. Why do you believe disability (mental/physical) was a factor in this action?

A39. I do not believe it was.

Q40. Do you believe reprisal (opposing discrimination) was a factor in this action?

A40. No

Q41. What duties were included in the Complainant's PMAP? What ratings did she received? Were her ratings abnormal from her previous ratings?

A41. I did not complete the employee's PMAP it was completed by Jason White. I do not know what it contains, how it was scored, or the final score. Since I do not have knowledge of her rating or score, there is insufficient information for me to respond to this question.

Q42. Did Caucasian employees with less duties job titles receive the same score as the Complainant? Who were these employees? Where do the employees view the PMAP ratings and how do they know if they received the same scores as another employee?

A42. All CCCs have the same job duties, so I do not know whom she refers to. I am not at liberty to discuss the scores of other employees without their consent.

Q43. Please describe what PMAP is and the agency policy for rating employees.

A43. Performance Management and Appraisal Program (PMAP) ratings are described in accordance with:

5 U.S.C. Chapter 43, Performance Appraisal, and 5 CFR Part 430, Performance Management

5 U.S.C. §§4303 and 4305 and 5 CFR Part 432.104, Achieved Unsatisfactory Results (UR) Performance

5 U.S.C. Chapter 45 and 5 CFR Part 451, Awards

5 U.S.C. §§5335 and 5304 and 5 CFR Part 531, Subpart D, Within-Grade Increases

5 U.S.C. §5336 and 5 CFR Part 531, Subpart E, Quality Step Increases

5 U.S.C. §3502 and 5 CFR §351.504, Reduction-in-Force

5 U.S.C. §§552a and 5 CFR §293.404 and 5 CFR §293.405, Employee Performance Records

5 CFR §432.104, Addressing Unacceptable Performance

Executive Order 13839, Promoting Accountability and Streamlining Removal Procedures Consistent with Merit System Principles, May 25, 2018

OMB Memorandum, Comprehensive Plan for Reforming the Federal Government and Reducing the Federal Civilian Workforce (M-17-22), April 17, 2017

HHS Performance Management Appraisal Program Handbook, 2016

All applicable HHS Collective Bargaining Agreements

Previously dictated by the Indian Health Manual Chapter 7

Claim 5: Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination) and subjected to harassment (non- sexual)/hostile work environment when:

Complainant alleged she was subjected to harassment/hostile work environment. Examples include, but not limited to: Complainant alleged she did not have sick leave put back into the E-Comp leave system while other employees did; and,

Q44. For this alleged discrimination, please identify: what happened, when it happened, and who made it happened, and the nature of your involvement. Please be very detailed.

A44. The complainant was informed numerous times to contact the Department of Labor as COVID claims are handled as workers' compensation, and the Department of Labor handles those. She was also informed that several laws dictate the return of sick leave hours to a leave bank. The complainant was informed of ways to contact the Department of Labor to discuss remedying the situation.

Q47. Do you believe age was a factor in this action?

A47. No, the return of sick leave to employees leave bank depends on several federal laws and executive actions. As far as I am aware Indian health services does not have any say in the return oven employees leave under workers' compensation.

Q48. Do you believe color was a factor in this action?

A48. No, the return of sick leave to employees leave bank depends on several federal laws and executive actions. As far as I am aware Indian health services does not have any say in the return oven employees leave under workers' compensation.

Q49. Do you believe race and national origin was a factor in this action?

A49. No, the return of sick leave to employees leave bank depends on several federal laws and executive actions. As far as I am aware Indian health services does not have any say in the return oven employees leave under workers' compensation.

Q50. Do you believe disability (mental/physical) was a factor in this action?

A50. No, the return of sick leave to employees leave bank depends on several federal laws and executive actions. As far as I am aware Indian health services does not have any say in the return oven employees leave under workers' compensation.

Q51. Do you believe reprisal (opposing discrimination) was a factor in this action?

A51. No, the return of sick leave to employees leave bank depends on several federal laws and executive actions. As far as I am aware Indian health services does not have any say in the return oven employees leave under workers' compensation.

Q52. Did the Complainant report to or ask her supervisor(s) or persons responsible why her sick leave was never put back into the E-Comp leave system? If so, who did she ask and what response did she receive?

A52. The complainant was informed on several occasions that whether sick time would be placed back into her leave account is determinant on which federal law was in effect at the time of her illness, and determination was not made by the agency but rather by the Department of Labor as they are responsible for all Worker's Compensation claims of federal employees. This was discussed on several occasions with the complainant and myself. Information on worker's compensation benefits for Federal employees related to COVID-19 was shared with her, and she was informed that more information could be found on the Department of Labor's Division of Federal Employees' Compensation page.

Q53. Why was the Complainant's sick leave never put back into the E-Comp leave system? What is the agency protocol for this situation?

A53. I do not know I defer to the Department of Labors Office of Workers Compensation as they handle these claims. I do not have this information as to why her sick leave was not reinstated. Again, The U.S. Department of Labor's Office of Workers' Compensation Programs (OWCP) administers four major disability compensation programs which provide to federal workers (or their dependents) and other specific groups who are injured at work or acquire an occupational disease.

Q54. What is the agency protocol for this situation?

A54. Employees file claims through the ECOMP system.

Claim 6: Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination) and subjected to harassment (non- sexual)/hostile work environment when:

Complainant alleged she was subjected to harassment/hostile work environment. Examples include, but not limited to: Complainant alleged she was told she needed to provide a doctor's note for her immunocompromised status and reasons that she should not be placed on front line RN triage. Complainant further alleged other Caucasian and contract employees were not required to submit this documentation.

Q55. For this alleged discrimination, please identify: what happened, when it happened, and who made it happened, and the nature of your involvement. Please be very detailed.

A55. All reasonable accommodation requests go through the equal employment opportunity office at Phoenix area office. Complainant was instructed to contact that office as they stated they did not have a reasonable accommodation on file. The process is the same for anyone who request a reasonable accommodation. The complainant did fail to participate in the interactive process. The complainant was requested to provide form HHS – 813 and Reasonable Accommodation Medical Request Form as provided by the ADR Reasonable Accommodation Program Manager at Phoenix area EEO office. The EEOC states that when the disability and/or the need for accommodation is not obvious, the employer may ask the individual for reasonable documentation about his/her disability and

functional limitations. The employer is entitled to know that the individual has a covered disability for which s/he needs a reasonable accommodation. Reasonable documentation means that the employer may require only the documentation that is needed to establish that a person has an ADA disability, and that the disability necessitates a reasonable accommodation. Thus, an employer, in response to a request for reasonable accommodation, cannot ask for documentation that is unrelated to determining the existence of a disability and the necessity for an accommodation. Complainant was informed of the reasonable accommodation process and that the contact for the process was at the Phoenix area office, the was instructed to contact the individual George Patton. The complaint was informed that according to Mr. Patton, there was no approved reasonable accommodation on file. I understand the employee refused to participate in the reasonable accommodation interactive process. I understand that the complainant was asked to provide appropriate documentation from a healthcare provider regarding the nature of any impairment(s), severity, duration, activities limited by the impairment(s), and the extent to which the impairment(s) limits the employee's ability to perform the job's essential duties/functions.

Q56. Do you believe age was a factor in this action?

A56. No

Q57. Do you believe color was a factor in this action?

A57. No

Q58. Do you believe race and national origin was a factor in this action?

A58. No

Q59. Do you believe disability (mental/physical) was a factor in this action?

A59. No

Q60. Do you believe reprisal (opposing discrimination) was a factor in this action?
A60. No

Q61. Were you aware of the nature of the Complainant's medical condition?

A61. The complaint stated that she was immunocompromised because of asthma. Evidence-based materials state that people with asthma are not considered immunocompromised; however, infections may sometimes trigger asthma. People with asthma should know the need to avoid infections and what to do if they become unwell. The agency is allowed to ask for documentation of the employee's disability to understand how to accommodate her best. As far as I am aware that was what was requested and that the employee refused to provide. I can only attest to what I am aware of as the EEO officer handles the Reasonable Accommodation process.

Q62. Did the Complainant file medical documentation from a medical professional regarding their medical condition?

A62. Not that I am aware of. In the past, I believe she filed but failed to participate in the interactive process only to demand that she had one and we could not do certain things as she decided it might cause an issue. I am not aware of an agreed Reasonable Accommodation only her statements many of which she states she cannot do are a requirement for her position.

Q63. Did the Complainant's medical condition (when active) interfere with her ability to perform any of the essential functions of her position? If so, please detail what specific functions of the Complainant's position she was unable to perform, or limited in performing, due to her medical condition.

A63. I do not have sufficient knowledge or information to respond to this question. Not that I can attest to as I have not seen any medical documentation regarding her limitations.

Q64. Did the Complainant request accommodation for her disability? (If yes, please identify the accommodation requested, the reason for request, the date of request, and the Agency's response to the request.)

A64. She states she did, but I do not have sufficient information to respond to this question effectively. I would have to defer to the ADR Reasonable Accommodation Program Manager at the Phoenix area EEO office Mr. George Patton. Any time requested to complete an assignment she did not want to do she

stated she could not because of reasonable accommodation. However, I was informed by the EEO officer that there was not a reasonable accommodation on file.

Q65. During the time of the alleged harassment(s) at issue, were you aware of the Complainant's disability? Explain your answer.

A65. I am still not aware of a disability only an illness of asthma. A diagnosis of asthma by itself does not constitute a disability.

Claim 7: Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination) and subjected to harassment (non- sexual)/hostile work environment when: Complainant alleged her reasonable accommodation, which she says was on file since February 21, 2022, was removed. Complainant further alleged she was being required to repeatedly submit forms to put an accommodation back in place; and,

Q66. For this alleged discrimination, please identify: what happened, when it happened, and who made it happened, and the nature of your involvement. Please be very detailed.

A66. As far as I am aware from information provided by the EEO officer Mr. Patton, the employee did not have a reasonable accommodation on file, which was the information provided to the complainant. Along with that information the complainant was provided with the information on whom to contact for a reasonable accommodation.

Q67. Do you believe age was a factor in this action?

A67. No

Q68. Do you believe color was a factor in this action?

A68. No

Q69. Do you believe race and national origin was a factor in this action?

A69. No

Q70. Do you believe disability (mental/physical) was a factor in this action?

A70. No

Q71. Do you believe reprisal (opposing discrimination) was a factor in this action?

A71. No

Q72. Was the Complainant's reasonable accommodation that was on file since February 21, 2022, removed from the request system or from any files?

A72. As previously stated, I am unaware of an approved reasonable accommodation or any files being removed from the system. Additionally, managers would not have access to the EEO system.

Q73. Who removed the reasonable accommodation that was on file since February 21, 2022? What was the reasoning given for the removal of the reasonable accommodation? Was any alternative reasonable accommodation offered by the agency?

A73. I have no information regarding this question. I would not have access to a system to remove any files or documentation. Nor am aware of the communications between the complainant and the EEO officer in regards to a reasonable accommodation. I have no knowledge of an agreed Reasonable Accommodation. The participant refused to participate in any form of interactive process when she stated had a reasonable accommodation, all she would do is state is she had one and we could not make her see patients which is a requirement of the position she occupies. She would not discuss what she felt to be reasonable and only stated that we had to make accommodations.

Q74. What forms was the Complainant asked to repeatedly submit? Who asked her to repeatedly submit forms to put a reasonable accommodation back in place after the removal of her reasonable accommodation request? Why as she asked to repeatedly submit forms? When was each new form submitted (to include dates)?

A74. The complainant was asked to complete the Department of Health and Human Services, Indian Health Service, Letter Requesting Documentation for Determining ADA Eligibility from a Medical Provider as provided by the EEO officer. As far as I know, this is the only form she was ever asked to complete. The complainant was informed that by refusing to provide documentation or participate in the interactive process, the agency risks providing an accommodation that is ineffective for her or improperly denying reasonable accommodation because it is unaware of alternatives that may need. Under the ADA, when an employee requests an accommodation and the disability and need

for accommodation are not obvious, the employer can request medical documentation to help determine whether the employee has a disability and needs the requested accommodation and information to help process the accommodation request. I do not consider any request to be repeatedly if the complainant failed to complete the paperwork necessary when it was originally requested. She was requested to complete the same paperwork everyone else is required to complete if the disability is not obvious in accordance with Federal Law.

Claim 8: Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination) and subjected to harassment (non- sexual)/hostile work environment when: Complainant alleged she was being required to swab symptomatic respiratory patients which was not part of her official duties.

Q75. For this alleged discrimination, please identify: what happened, when it happened, and who made it happened, and the nature of your involvement. Please be very detailed.

A75. Patient care is part of the complainant's official duties as a licensed registered nurse. All registered nurses in the primary care clinic that were not contractors were required to rotate days to do nasal swabs for COVID-19 testing. Contractors were not required as aas I understand that was not part of the contract's statement of work. When the statement of work was clarified even the contract RN was added to the rotation. See the email from Jason White dated 01/19/2023 to the CCCs.

Q76. Do you believe age was a factor in this action?

A76. No

Q77. Do you believe color was a factor in this action?

A77. No

Q78. Do you believe race and national origin was a factor in this action?

A78. No

Q79. Do you believe disability (mental/physical) was a factor in this action?

A79. No

Q80. Do you believe reprisal (opposing discrimination) was a factor in this action?

A80. No

Q81. Who required the Complainant to swab symptomatic respiratory patients?

A81. I assigned her the task.

Q82. Was this a part of the Complainant's job duties? If not, whose job duty is it to swab symptomatic respiratory patients?

A82. The complainant's official position description states "Uses appropriate medical supplies and/or equipment for the assigned clinic, such as 12-lead EKGs, fetal monitor, pulse oximeter, etc. and ***collects patient specimens***, including blood

draw, if needed. Processes lab specimens for transport or perform tests, such as waived tests, to obtain results." Therefore it is part of complainants job duties.

Q83. Please identify any witnesses with relevant information regarding the claims accepted for investigation, including name, contact information and a brief description of what relevant information they can provide.

A83.

- ADA Reasonable Accommodation Program Manager at Phoenix Area EEO Office Mr. George Patton Reasonable accommodation requests. George.Patton@IHS.gov
- Jason White Nurse Consultant Jason.White@ihs.gov
- Brenda Barr Clinical Nurse Brenda.Barr@ihs.gov
- Elizabeth Hill Clinical Care Coordinator Elizabeth.Hill@ihs.gov
- Bertha Edison Clinical Care Coordinator Bertha.Edison@ihs.gov
- Angela Dickerson Supervsory Clinical Nurse Angela.Dickerson@ihs.gov
- Carolyn Taphae Supervisory Clinical Nurse Carolyn.Tapahe@ihs.gov

Q84. Do you have any documentation you would like to provide in support of your testimony? If yes, identify all documents you will be providing and their relevance to the complaint.

A84.

1. *Official Position Description PX3439 PCMC CCC (02.28.21)*

2. Department of Health and Human Services Indian Health Service Letter Requesting Documentation for Determining ADA Eligibility from a Medical Provider Form.
3. Letter to Tonie Greve via secure email requesting medical documentation as EEO Officer George Patton requested
4. Email chain regarding CCC split dated January 4, 2023. Relevant to the number of providers assigned to each CCC.
5. Email Jason White on RN COVID swabbing rotation showing all Registered Nurses were assigned a day to do the swabs relevant as it shows that the duty was assigned to all RNs in the clinic.

Q85. Is there anything else you would like to add into the record?

A85.

1. The complainant persistently exploits the Equal Employment Opportunity (EEO) system to retaliate against any person who assumes the role of her supervisor within the Primary Care Clinic. A repetitive cycle of lodging similar or identical accusations of discrimination against each of her supervisors is evident, despite her awareness that her claims are fictitious and lacking in validity. The complainant has consistently misused the EEO system for reasons other than the intended objective of preventing and eliminating discriminatory practices. The case satisfies the criteria for demonstrating a clear pattern of EEO system misuse as stipulated under 29 C.F.R. § 1614.07:

(i). Evidence of recurrent complaints.

(ii). Claims that are alike, identical, lack detail or pertain to previously resolved issues.

(iii). Proof of bypassing other administrative procedures, retaliating against the organization's internal administrative process and overloading the EEO complaint system of the agency.

The facts reveal that the complainant's sole aim is to lodge unavailing EEO complaints against the organization in vengeance for being held responsible for accomplishing the tasks specified in her official job description. The individual was always treated equivalently to all other employees I supervised, irrespective of their job title, race, age, color, religion, gender, nationality, disability, or tribal association. Until this claim was made, I was unaware of her tribal affiliation or that of Ms. Hill or Ms. Edison.

The complainant currently has five Hostile Work Environment allegations pending against her.

2. The complainant continues exploiting the EEO system as retribution against anyone who oversees her within the clinic. The complainant has consistently lodged similar or duplicate accusations of bias against every manager she's worked under, fully cognizant that these claims are groundless and fabricated. The complainant has demonstrated a blatant pattern of EEO system abuse, using it for objectives outside its intended use of discrimination prevention and elimination. Again the grievance satisfies the criteria for demonstrating a manifest misuse of the EEO process as delineated under 29 C.F.R. § 1614.07:

(i). Documentation of multiple grievances.

(ii). Accusations that are comparable, identical, lack detail, or pertain to previously settled issues.

(iii). Proof of bypassing other administrative procedures, retaliating against the organization's internal administrative process and overstressing the agency's EEO complaint system.

The facts indicate that the complainant's sole aim is to lodge pointless EEO allegations against the supervisor in retribution for her being held responsible for fulfilling her official role obligations. The complainant was never treated differently from any other employees I managed, irrespective of their job title, race, age, color, religion, sex, national origin, disability, or tribal association. Until this allegation came up, I had no knowledge of her tribal affiliation or that of Ms. Hill or Ms. Edison.

The employee currently has five pending Hostile Work Environment charges against her.

3. The complainant's abuse of the EEO process is a clear attempt to harass and intimidate the agency. The complainant's repeated filings of frivolous complaints are a waste of the agency's resources and time. They also serve to undermine the integrity of the EEO process.

For these reasons, I respectfully request a dismissal of the complainant's latest complaint for:

- **Duplication of a claim**: The allegation states a claim identical to one that was raised in a pending complaint or in a prior complaint that has been decided. 29 C.F.R. Section 1614.107(a)(1).
- **Mootness**. There is no reasonable expectation that the action or practice will happen again and interim relief or events have completely and irrevocably eradicated the effects of the alleged violation. 29 C.F.R. Section 1614.107(a)(5).
- **Abuse of process:** The complaint evidences a clear pattern of misuse of the EEO process for a purpose other than the prevention and elimination of employment discrimination. A clear pattern of misuse of the EEO process requires: (1) evidence of multiple complaint filings; and (2) allegations that are similar or identical, lack specificity, or involve matters previously resolved; or evidence of circumventing other administrative processes or intentionally trying to clog the agency's in-house administrative processes or overburdening the EEO complaint system. 29 C.F.R. Section 1614.107(a)(9).

Additionally, I ask that the complainant be warned about any further acts of contumacious conduct. Reference case Agency. Stoyanov v. Dep't of the Navy, EEOC Appeal Nos. 0120113142, 0120113817, & 0120114019 (December 6, 2011).

COUNTER-COMPLAINTS

Defamation (Slander and Libel), abuse of process, harassment, hostile work environment, contumacious conduct, intentional infliction of emotional distress, and racial and gender discrimination.

Complainants' statements were made in writing and orally.

The Complainant's statements were actual malice as the Complainant made false statements about me, knowing they were false and/or with reckless disregard for whether the statement was true or false.

The complainant was negligent about whether her statements were true or false.

As a result of the statements made against me, I have suffered the following:

- Loss of reputation: I have been publicly accused of wrongdoing, which has damaged my reputation.
- Damage to my career: I have been relieved of my supervisory duties in three departments as a result of the accusations against me.
- Mental anguish: I have experienced severe emotional distress as a result of the accusations against me. I have had trouble sleeping, concentrating, and enjoying my life.
- Emotional distress: I have been humiliated and shamed by the accusations against me. I have felt isolated and alone.
- Public humiliation: I have been the subject of gossip and speculation at work and in my community. I have felt embarrassed and ashamed.
- Loss of enjoyment of life: I have lost my zest for life. I no longer enjoy the things I used to do.
- Depression: I have depression. I have had difficulty sleeping, eating, and concentrating.
- Anxiety: I have anxiety. I am constantly worrying about the future and what people think of me.
- Loss of appetite and energy: I have lost my appetite and have difficulty getting through the day. I feel tired and run down all the time.
- Sleep disturbance: I have difficulty sleeping. I wake up in the middle of the night and have trouble falling back asleep.

I am requesting that action be taken to protect my rights and to ensure that I am not discriminated against and harassed in the future by the complainant.

I typed the forgoing Affidavit consisting of 33 pages and hereby attest under penalty of perjury that it is true and correct to the best of my knowledge and belief. I have signed or initialed each page. I have been allowed to make any corrections and/or additions I have submitted.

Wednesday, June 28, 2023

Kevin D. Turnage
Affiant Name

Date

Name
EEO Investigator

Date

**********NOTHING BELOW THIS LINE**********